

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DUSTIN LEE HENNAGIN,

Petitioner

VS.

KELLEEN VICTORIA MCALLISTER,

Respondent

) Case Number: FMS-17-387014

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: ROGER C. CHAN

REQUEST FOR ORDER: CHANGE OF CHANGE OF VENUE TO SONOMA COUNTY PER CCP &
397 AND THE UCCJEA

TENTATIVE RULING

The Court has read and considered the pleadings, declarations, and other evidence submitted in this matter. For good cause shown, the Court makes the following findings and orders:

The parties are Petitioner Dustin Lee Hennagin and Respondent Kelleen Victoria McAllister. They share one minor child: Avery Grace McAllister-Hennagin (DOB: 2/5/15). On 8/22/17, Petitioner filed a Petition for Custody and Support of Minor Children. On 9/19/17, Respondent filed a Response to Petition for Custody and Support of Minor Children attached to which is a Voluntary Declaration of Parentage. On 10/23/24, the Sonoma County Juvenile Court issued a final custody order awarding Petitioner with sole physical and legal custody of the child and opened family law case number SFL090784. There is also a Petition for Termination of Parental Rights pending in Sonoma County. Respondent has a pending criminal case in Sonoma County in which she is subject to a criminal protective order protecting the child.

On 3/26/26, Petitioner filed a Request for Order seeking change of venue to Sonoma County. The minor child resides with Petitioner in Sonoma County where Petitioner works and the child attends school and

1 receives medical care. According to the UCCJEA declaration, the child has resided continuously in
2 Sonoma County since 2021. Respondent objects.

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4 The Court finds that Sonoma County is the proper venue of this action and that the ends of justice and the
5 convenience of the parties would be promoted by the transfer of venue. San Francisco County is no longer
6 where witnesses and persons having knowledge of facts bearing on the present issues are apt to be found.

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8 Petitioner's request to transfer this matter to Sonoma County is GRANTED.

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- 10 1) The Department of Child Support Services is not involved.
 - 11 2) The above-captioned case will be transferred to the Superior Court of California, County of
12 Sonoma.
 - 13 3) Petitioner shall pay all costs associated with this transfer of venue. Petitioner is ordered to bring
14 the order immediately to Room 402 to commence the transfer process and pay the fees.
 - 15 4) The Court of the Clerk is ordered to transmit the case file to the clerk of the Superior Court of
16 California, County of Sonoma, within five court dates of the date of expiration of the twenty-day
17 time period to petition for a writ of mandate, or if a writ is filed, within five court dates of the
18 notice that the order is final, and mail notice to all parties who have appeared in the action or
19 proceeding stating the date of the transmittal. Code of Civil Procedure section 399.

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21 The Court will prepare the Findings and Order After Hearing.
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